

Opinion of the Court

cost recovery action for some form of liability other than joint and several. We think it more prudent to withhold judgment on these matters.

In view of the importance of the § 107 issue and the absence of briefing and decisions by the courts below, we are not prepared—as the dissent would have it—to resolve the § 107 question solely on the basis of dictum in *Key Tronic*. We held there that certain attorney’s fees were not “‘necessary costs of response’” within the meaning of § 107(a)(4)(B). 511 U. S., at 818–821. But we did not address the relevance, if any, of *Key Tronic*’s status as a PRP or confront the relationship between §§ 107 and 113. In discussing § 107, we did not even classify it precisely as a right of cost recovery or a right of contribution, as the dissent’s descriptions of the decision reveal. *Post*, at 172 (opinion of GINSBURG, J.) (describing *Key Tronic* as recognizing a right to “‘seek recovery of cleanup costs’” (quoting 511 U. S., at 818), but in the following paragraph saying that *Key Tronic* identified a “right to contribution”). “Questions which merely lurk in the record, neither brought to the attention of the court nor ruled upon, are not to be considered as having been so decided as to constitute precedents.” *Webster v. Fall*, 266 U. S. 507, 511 (1925). Aviall itself recognizes the need for fuller examination of the § 107 claim; it has simply requested that we remand for consideration of that claim, not that we resolve the claim in the first instance.

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In addition to leaving open whether Aviall may seek cost recovery under § 107, Part III–B, *supra*, we decline to decide whether Aviall has an implied right to contribution under § 107. Portions of the Fifth Circuit’s opinion below might be taken to endorse the latter cause of action, 312 F. 3d, at 687; others appear to reserve the question whether such a cause of action exists, *id.*, at 685, n. 15. To the extent that Aviall chooses to frame its § 107 claim on remand as an im-